

25STCV19864 25STCV19864

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV19864 Hearing Date: August 12, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

12, 2026 TRIAL

DATE: Not set

CASE: Justin S. Maniago, et al. v. General Motors, LLC

CASE NO.: 25STCV19864

DEFENDANT

GENERAL MOTORS LLC'S MOTION FOR COMPLIANCE PURSUANT TO C.C.P. § 871.26; AND REQUEST
FOR SANCTIONS

MOVING PARTY: Defendant

General Motors, LLC

RESPONDING PARTY: Plaintiffs Justin

S. Maniago and Fe S. Maniago

I. INTRODUCTION

This is a

Song-Beverly action. On May 12, 2026, defendant

General Motors, LLC ("GM") filed this motion to compel Plaintiffs, Justin S.

Maniago and Fe S. Maniago, to provide the complete production of documents and

written disclosure of information as required under Code of Civil Procedure (CCP) sections 871.26, subdivisions (b) and (f).
GM also requests sanctions against Plaintiff's counsel in the amount of \$1,500 as required under CCP § 871.26(j).

On July 30,
2026, Plaintiffs filed an opposition.

On August
4, 2026, GM filed a reply.

II. LEGAL STANDARD

CCP section 871.26 allows for an expedited
discovery and resolution process in "lemon law" matters:

(b)

Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

...

(f) The plaintiff shall provide the following documents to
all other parties pursuant to the timeline set forth in subdivision (b):

1.

Sales or lease agreement.

2.

Copy of current registration.

3.

Any finance information,
account information, including payment history and estimated payoff amount, and
any loan modification agreements.

4.

Any repair orders, including
to third-party repair facilities or the location of where information relating
to repair orders may be found.

5.

Documents detailing all
underlying claimed incidental damages.

6.

Information pertaining to the
market value of the motor vehicle that is currently in the consumer's
possession.

7.

Any written, pre-suit
communications with the manufacturer, including, but not limited to, any
restitution or replacement request.

(g) The plaintiff shall provide the following information
to all other parties pursuant to the timelines set forth in subdivision (b):

1.

Mileage of the motor vehicle
as of the date of the disclosure described in subdivision (b).

2.

Primary driver or drivers of
the motor vehicle.

3.

If the motor vehicle is
primarily used for a business purpose, whether more than five vehicles are
registered to the business.

4.

Whether the plaintiff is
still in possession of the motor vehicle.

5.

Address where the motor

vehicle is located.

6.

Whether the plaintiff is an active or prior member of the Armed Forces.

7.

Whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number.

8.

Whether the motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification.

9.

Dates and mileages for presentations that are not included in the provided repair orders or the location of where the information may be found.

10. Whether the plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.

11. Any need for an interpreter for purposes of a deposition.

(CCP, § 871.26(b), (f), (g).)

In the event a plaintiff fails to timely provide these disclosures, CCP section 871.26 requires that the court sanction counsel \$1,500.00 for each such failure:

(j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500)

sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(CCP, § 871.26(j)(1)-(2).)

III. DISCUSSION

A. Judicial Notice

GM's unopposed request for judicial notice is GRANTED.

B. Analysis

The motion is moot. On November 24, 2026, Plaintiffs served their initial disclosures which is well before the statutory deadline. (See Smith Decl., ¶ 4, Ex. A.)

In reply, GM argues the motion is not moot because, contrary to Plaintiffs' position, Plaintiffs have not served any initial disclosures. However, Plaintiffs provide proof of service of their initial disclosures. (See Smith Decl., ¶ 4, Ex. A.)

Based on the record before the court, there is no basis to grant the motion.

IV. CONCLUSION

The motion is DENIED. 2

Moving Party to give notice, unless waived.

Dated: August 12, 2026

Brock T. Hammond

Judge of the Superior Court